

PETITION FOR EXPUNGEMENT OF CRIMINAL RECORD UNDER MISS. CODE ANN. SEC.
99-19-71(1)

IN THE COURT OF , MISSISSIPPI
(WRITE THE COURT THAT ENTERED THE CONVICTION - JUSTICE, COUNTY, CIRCUIT OR
MUNICIPAL - AND ITS COUNTY, OR FOR A MUNICIPAL COURT ITS CITY)

STATE OF MISSISSIPPI

v.

Marcus Deshawn Whitfield, PETITIONER

Cause No.

(copy the cause number from the court record; where the court assigns a new number for the
expungement it is supplied at filing)

PETITION FOR EXPUNGEMENT OF CRIMINAL RECORD UNDER MISS. CODE ANN. Sec.
99-19-71(1)

The petitioner, Marcus Deshawn Whitfield, petitions this Court, as the court in which the conviction was
had, for an order expunging the misdemeanour conviction described below from all public records,
pursuant to Miss. Code Ann. Sec. 99-19-71(1), and states:

FIRST. The identifying facts of the conviction, each taken from the court record:

Petitioner's date of birth: 1993-06-08

Offence of which the petitioner was convicted, worded as the court record words it, with the Mississippi
Code section where the record states one:

.....
.....

Date of the offence:

.....

Date of arrest or citation:

.....

Agency that made the arrest or issued the citation:

.....

That agency's own case or citation number, where the record states one:

.....

Date of the conviction, from the judgment:

.....

SECOND. The offence is a misdemeanour, and the judgment of this Court is the disposition of the case.

THIRD. The following two statements are the petitioner's own, made after the petitioner has reviewed the petitioner's own Mississippi criminal history record. Each is made by the petitioner's initials beside it, and nothing is initialled for the petitioner:

PETITIONER'S INITIALS The offence is not a traffic violation, and is not a DUI.

PETITIONER'S INITIALS I am a first offender. I have no conviction for any other offence, in Mississippi or anywhere else, and I have never had a conviction expunged before.

FOURTH. Section 99-19-71(1) states no waiting period for this petition, and none is asserted or required here.

FIFTH. The petitioner therefore requests that the Court enter an order expunging the conviction described above from all public records, with a nonpublic record retained by the Mississippi Criminal Information Center solely for the purpose Miss. Code Ann. Sec. 99-19-71(3) states.

I declare that the facts stated in this petition are true and correct.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Marcus Deshawn Whitfield

MAILING ADDRESS: 218 Pinehurst Avenue, Tupelo, MS 38801

TELEPHONE: 662-555-0148

EMAIL: marcus.whitfield@example.org

Route:

obligation:track-pathway:MS:ms-misd-1st:first-offender-nontraffic-misdemeanor-conviction-expungement-99-19-71-1

PROPOSED ORDER OF EXPUNGEMENT

IN THE COURT OF , MISSISSIPPI
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PROPOSED ORDER OF EXPUNGEMENT

(This order is tendered with the petition for the Court's consideration, which is Mississippi practice. Every
finding below is a proposal for the Court to make; nothing in it is an assertion of fact by the preparer, and
nothing on this page is completed for the Court.)

THIS CAUSE came before the Court on the petition of Marcus Deshawn Whitfield for expungement of a
misdemeanour conviction under Miss. Code Ann. Sec. 99-19-71(1), and the Court, having considered the
petition, would find that the petitioner meets the criteria of Sec. 99-19-71(1): the offence is a
misdemeanour that is not a traffic violation, and the petitioner is a first offender.

IT IS THEREFORE ORDERED that the conviction described in the petition is expunged from all public
records, and that every person and agency keeping an official record of the arrest or the conviction shall
expunge it, including the following, each named by the petitioner from the case record:

Agency that made the arrest or issued the citation, as the order must direct it:

.....

Sheriff's department of the county, where its records carry the case:

.....

Any other person or agency keeping an official record of the case:

.....

PROVIDED that the existing records of fingerprints are excepted from this order, as Miss. Code Ann. Sec.
99-19-71 provides; that the Mississippi Criminal Information Center shall retain a nonpublic record solely
for the purpose of determining, in subsequent proceedings, whether the person is a first offender; and that
upon entry of this order the petitioner is restored, in contemplation of law, to the status the petitioner
occupied before the arrest, and shall not be held thereafter guilty of perjury for failure to recite the arrest
or conviction, except as Sec. 99-19-71(3) provides for first-offender determinations.

SO ORDERED.

ENTERED, this the day of,

JUDICIAL OFFICER OF THE COURT
(the Court alone completes, signs and enters this order)

APPROVED AS TO FORM, for the prosecuting authority:

.....

(some districts expect the prosecuting authority to approve the order as to form before it is presented; this block is never completed by the preparer and is never pre-signed)

Route:

obligation:track-pathway:MS:ms-misd-1st:first-offender-nontraffic-misdemeanor-conviction-expungement-99-19-71-1

CERTIFICATE OF SERVICE

IN THE COURT OF , MISSISSIPPI
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CERTIFICATE OF SERVICE

I, Marcus Deshawn Whitfield, certify that a true and correct copy of the Petition for Expungement of
Criminal Record and of the proposed Order of Expungement in this cause was delivered to the
prosecuting authority named below:

Prosecuting authority served - for a circuit court case the district attorney for the circuit district, for a
county, justice or municipal court case the county or municipal prosecuting attorney (write the office as
the court record names it):

.....

Mailing address at which that office was served:

.....

.....

Manner of delivery (mark the one used):

[] By United States mail

[] By hand delivery

DATE OF DELIVERY OF THE COPY

SIGNATURE OF PETITIONER

(This page is completed and signed by the petitioner when the copy actually goes out. A date or a
signature written before the copy goes out would be false.)

Route:

obligation:track-pathway:MS:ms-misd-1st:first-offender-nontraffic-misdemeanor-conviction-expungemen
t-99-19-71-1

EXHIBIT CHECKLIST

Prepared for: Marcus Deshawn Whitfield

Attach these exhibits to the petition. Each is named here and obtained by you; nothing is obtained, inspected or authenticated for you.

EXHIBIT A - IN EVERY CASE. A certified copy of the judgment of conviction, from the office that keeps the records of the convicting court. It establishes the court, the offence and the conviction date.

ADVISED, AND EXPECTED IN PRACTICE IN MANY COURTS, THOUGH SUBSECTION (1) DOES NOT REQUIRE THEM:

- The docket sheet for the case, from the same office. It shows every court-imposed term and whether each was satisfied.
- An account balance sheet for the case showing a zero balance, from the same office. Subsection (1) does not require payment, but courts commonly require a zero balance in practice.
- Your own Mississippi criminal history record, from the Mississippi Criminal Information Center. It is the only reliable way to check first-offender status across all courts, and self-report is not enough.

Do NOT attach an indictment on this track unless the case was actually indicted; most misdemeanour cases are not, and pleading an indictment that does not exist would be false.

Route:

obligation:track-pathway:MS:ms-misd-1st:first-offender-nontraffic-misdemeanor-conviction-expungement-99-19-71-1

FILING INSTRUCTIONS

This packet is prepared for expunging a first-offender Mississippi misdemeanour conviction that is not a traffic violation, under Miss. Code Ann. Sec. 99-19-71(1).

Prepared for: Marcus Deshawn Whitfield

WHAT YOU DO, IN ORDER

STEP ONE. Identify the correct court and county first. Mississippi has four trial court levels - justice, county, circuit and municipal - that all handle expungements, and people routinely misidentify which one heard their case. The office that keeps the records of the court that entered the conviction can confirm it.

STEP TWO. Ask that office for the case file, the docket sheet, an account balance sheet, and a certified copy of the judgment of conviction. Request your own Mississippi criminal history record from the Mississippi Criminal Information Center, and check the first-offender statement against it before you initial it.

STEP THREE. Call that court's records office before filing and ask whether that court has its own preferred petition or order form or any additional requirement. Mississippi has no statewide form, practice varies by county and circuit district, and this packet defers to the local form wherever one is preferred.

STEP FOUR. Fill in every dotted blank this packet's participant instructions list, from the records. Do not guess a date or a charge wording. Initial the two statements in the petition only if each is true.

STEP FIVE. Sign and date the petition yourself.

STEP SIX. File the petition, with the proposed order and the certificate of service, with the court in which the conviction was had, and pay the filing fee. No fee amount is published in this packet: Miss. Code Ann. Sec. 99-19-72 levies a fee on petitions to expunge an offence under Sec. 99-19-71, but its reach and its collection in lower courts are recorded open questions, so confirm the amount - and any pauper's-affidavit route if you cannot pay - with the court's records office before filing.

STEP SEVEN. Deliver a copy of the petition and the proposed order to the prosecuting authority - for a municipal court case the city prosecutor, not the district attorney - by United States mail or hand delivery, and complete the certificate of service when the copy actually goes out.

STEP EIGHT. Expect that some districts want the district attorney to approve the order as to form before the judicial officer signs. That is a negotiation this packet does not conduct for you.

STEP NINE. After the order issues, obtain certified copies and deliver them to every agency named in the order.

WHAT THE ORDER DOES, FROM THE RECORD

- Fingerprint records are excepted from expungement.
- The Mississippi Criminal Information Center keeps a nonpublic record solely for determining, in subsequent proceedings, whether you are a first offender - so an expunged conviction can still defeat first-offender status later.
- An employer may still ask whether an order of expunction has been entered.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

Stop, and take this packet to a lawyer or a legal-aid office, if any of these is true:

- your first-offender status is uncertain, or you have any prior conviction anywhere;
- you have any prior expunged case - an earlier expungement does not restore first-offender status;
- the offence may be a traffic violation - many Mississippi misdemeanors sit close to that line;
- the offence is a DUI, which has its own separate route and is never handled here;
- the conviction is in municipal court and you also have justice court convictions, which may be better handled on the additional-misdemeanors track;
- you are not a United States citizen - expungement does not resolve immigration consequences.

WHAT THIS PACKET DOES NOT TELL YOU

- The filing fee amount, and whether Sec. 99-19-72's fee reaches this petition in this court. The records office of the convicting court is the authority that can answer both.
- Whether your court requires verification or notarization of the petition. No held record establishes a notarization requirement, so the petition carries a simple truth statement; the same office can say whether that court expects more.
- Your court's own preferred forms or local requirements, which vary by county and district. Ask before you file.

WHAT THIS PACKET IS NOT

This is a prepared set of composed pleadings and process pages. Mississippi publishes no statewide expungement form, which is why these pages are composed. It is not legal advice, it is not filed for you, and it does not decide whether the court will grant expungement.

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